

FORMAL REPORT

Transparency Concerns Regarding the Royal Canadian Mounted Police Memorandum of Understanding with the Ministry of Public Security of the People's Republic of China

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Executive Summary

This report examines concerns arising from the Royal Canadian Mounted Police's refusal to publicly release the full contents of a Memorandum of Understanding (MOU) entered into with the Ministry of Public Security (MPS) of the People's Republic of China. According to public statements, the agreement concerns cooperation between Canadian and Chinese law enforcement agencies in areas including information sharing, investigative assistance, anti-corruption efforts, cybercrime investigations, money laundering, narcotics enforcement, and other forms of transnational crime.

While the stated objectives of the agreement may appear legitimate on their face, the refusal to disclose its contents has raised significant questions regarding transparency, democratic accountability, civilian oversight, national sovereignty, and public trust. The RCMP has indicated that it will not release the agreement without the concurrence of the Chinese government. This position has generated concern among members of Parliament, civil liberties advocates, diaspora communities, and Canadians who believe that agreements involving their national police force should be subject to meaningful public scrutiny.

This report does not allege wrongdoing. Rather, it examines the facts currently available, explores the broader context surrounding the agreement, identifies concerns raised by various stakeholders, and presents questions that remain unanswered. The objective is to encourage informed public discussion regarding the appropriate balance between operational confidentiality and democratic accountability.

Introduction

As a Canadian citizen, I recognize that international law enforcement cooperation is often necessary to combat organized crime, cybercrime, human trafficking, narcotics trafficking, money laundering, terrorism, and other transnational threats. Modern criminal organizations frequently operate across national borders, requiring cooperation between police agencies from different jurisdictions.

However, in a democratic society, public institutions derive their legitimacy from transparency, accountability, and public confidence. The greater the authority exercised by a government institution, the greater the obligation for oversight and public scrutiny.

The RCMP occupies a unique position within Canada's democratic framework. It is not merely another government department. It serves as Canada's national police force and is entrusted with significant investigative powers, intelligence-gathering capabilities, and responsibilities related to national security. For this reason, agreements entered into by the RCMP with foreign governments deserve careful examination, particularly when those governments have been identified by Canadian intelligence agencies and public inquiries as potential sources of foreign interference and national security concern.

Background of the Memorandum of Understanding

In January 2026, the RCMP entered into a Memorandum of Understanding with China's Ministry of Public Security. Publicly available information indicates that the agreement was signed during a period of renewed diplomatic engagement between Canada and China.

According to statements released by Canadian authorities, the agreement seeks to facilitate cooperation in areas including:

- Information sharing between law enforcement agencies.
- Assistance with criminal investigations.
- Anti-corruption initiatives.
- Counter-narcotics operations.
- Money laundering investigations.
- Cybercrime enforcement.
- Other forms of transnational criminal activity.

Government statements further indicate that the agreement is intended to operate in accordance with Canadian law, Chinese law, international obligations, and existing internal policies governing law enforcement cooperation.

Officials have also stated that the agreement follows principles of sovereignty, mutual benefit, equality, and respect for domestic legal frameworks.

Notably, however, neither Parliament nor the Canadian public has been provided with the full text of the agreement.

The RCMP has stated that disclosure of the document requires the agreement of both parties and that unilateral release by Canada would violate the terms under which the agreement was negotiated.

This position forms the central concern examined throughout this report.

Context Surrounding Public Concern

The Ministry of Public Security serves as China's principal national policing and domestic security agency. It performs functions that extend beyond conventional criminal investigations and is closely integrated into China's broader state security apparatus.

Over the past decade, concerns have emerged internationally regarding allegations of transnational repression conducted by entities connected to the Chinese state. Such concerns have been raised by:

- Human rights organizations.
- Academic researchers.
- Intelligence agencies.
- Members of diaspora communities.
- Parliamentary committees in democratic nations.
- Journalists and investigative organizations.

Reports have alleged attempts to monitor, intimidate, pressure, or influence individuals living outside China, including political dissidents, democracy advocates, journalists, and members of ethnic minority communities.

Within Canada, allegations concerning foreign interference have generated substantial public attention. Investigations into alleged overseas police stations and reports involving intimidation of diaspora communities have contributed to broader concerns regarding foreign state activities occurring within Canadian borders.

Regardless of whether specific allegations are ultimately substantiated, the existence of these concerns creates a context in which transparency becomes especially important.

Many Canadians reasonably expect that agreements involving foreign security institutions associated with such controversies should be subject to a higher degree of public scrutiny rather than a lower one.

The Question of Democratic Accountability

The most significant issue may not be the existence of the agreement itself, but rather the secrecy surrounding it.

The RCMP has argued that confidentiality provisions are standard practice and that similar agreements exist with numerous countries around the world. While this may be true, the existence of precedent does not eliminate legitimate questions regarding accountability.

A democratic society depends upon informed consent of the governed. Citizens cannot meaningfully evaluate government decisions when the details of those decisions remain inaccessible.

The refusal to release the agreement raises several important questions:

- What information-sharing mechanisms are authorized under the agreement?
- What safeguards exist to prevent misuse of information?
- What categories of information may be exchanged?
- What oversight mechanisms govern implementation?
- What limitations are imposed upon either party?
- What accountability measures exist in the event of abuse or misconduct?
- What protections exist for Canadian citizens, permanent residents, refugees, and members of vulnerable communities?

Without access to the document itself, Canadians are effectively being asked to trust assurances rather than evaluate facts.

Trust is important, but trust alone is not a substitute for transparency.

Sovereignty Considerations

Particularly concerning is the RCMP's position that the agreement cannot be released without approval from the government of the People's Republic of China.

This raises a fundamental question regarding Canadian sovereignty.

Canadians may reasonably ask why a foreign government possesses effective veto authority over the disclosure of an agreement involving Canada's national police force.

The issue is not whether China requested confidentiality. Such provisions are common in international agreements.

Rather, the issue is whether Canada's commitment to transparency and democratic accountability should be subordinate to the preferences of a foreign state.

Even if portions of the agreement legitimately require protection for operational reasons, many Canadians would likely support the release of a redacted version accompanied by explanations for any withheld sections.

The current position creates an appearance that transparency to Canadian citizens is contingent upon the approval of a foreign government.

Whether or not that perception is accurate, perceptions themselves can significantly affect public trust.

Impact on Public Confidence

Public confidence is among the most valuable assets possessed by any democratic police service.

Police authority ultimately depends not only upon legislation and enforcement powers, but also upon public legitimacy. Citizens are more likely to cooperate with institutions they trust, and trust is strengthened through openness.

When information is withheld, especially concerning matters involving foreign governments and national security, skepticism naturally increases.

Many Canadians are already concerned about:

- Foreign interference.
- Influence operations.
- Cybersecurity threats.
- Protection of personal information.
- Government transparency.
- Accountability of public institutions.

Against this backdrop, secrecy surrounding the agreement may unintentionally undermine confidence in both the RCMP and the broader institutions responsible for national security.

Transparency does not weaken institutions. In most cases, it strengthens them.

Where secrecy is necessary, authorities should be prepared to clearly explain why.

Implications for Vulnerable Communities

Special consideration should be given to diaspora communities that may feel particularly vulnerable to foreign state influence or intimidation.

Many individuals who immigrate to Canada do so seeking political freedom, personal safety, and protection under Canadian law. Members of affected communities may understandably have concerns regarding any agreement involving security institutions from countries they previously fled.

These concerns should not be dismissed.

Even if the agreement contains robust safeguards, public confidence among affected communities cannot be maintained if those safeguards remain unknown.

Meaningful consultation, transparency, and independent oversight may be necessary to reassure Canadians that their rights remain fully protected.

Questions Requiring Further Examination

Several important questions remain unanswered:

1. Why is concurrence from Beijing required before Canadians can review an agreement involving their national police force?
2. What specific categories of information may be exchanged under the agreement?
3. What safeguards exist to prevent misuse of information provided by Canadian authorities?
4. What oversight mechanisms monitor implementation of the agreement?
5. What role does Parliament play in reviewing such agreements?
6. Has any independent body evaluated potential risks associated with the arrangement?
7. What protections exist for Canadian citizens, permanent residents, refugees, journalists, activists, and diaspora communities?
8. What criteria were used to determine that public disclosure would be inappropriate?
9. Could a redacted version be released without compromising legitimate operational concerns?

10. How does the RCMP reconcile commitments to transparency with its current position regarding disclosure?

These questions deserve direct and comprehensive answers.

Recommendations

While this report does not advocate any predetermined outcome, several measures warrant serious consideration:

Transparency Measures

- Release the full agreement where possible.
- If full release is not feasible, provide a publicly accessible redacted version.
- Publish a detailed explanation for any withheld sections.

Independent Oversight

- Conduct a review through an appropriate parliamentary committee.
- Permit examination by independent legal and national security experts.
- Establish regular reporting requirements regarding implementation.

Public Accountability

- Provide clear public communication regarding the agreement's purpose and limitations.
 - Explain safeguards protecting Canadian rights and freedoms.
 - Address concerns raised by affected communities in a transparent and respectful manner.
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Conclusion

The issue at hand extends beyond a single Memorandum of Understanding.

At its core, this matter concerns the relationship between public institutions and the citizens they serve. It concerns the degree of transparency Canadians should expect from their national police

force, the limits of confidentiality in democratic governance, and the balance between operational effectiveness and public accountability.

The RCMP has asserted that confidentiality is standard practice and that the agreement serves legitimate law enforcement objectives. Those explanations deserve consideration. At the same time, Canadians are equally entitled to ask whether the current level of secrecy is justified and whether sufficient oversight exists to ensure that Canadian rights, interests, and sovereignty remain fully protected.

The public deserves answers that are detailed, factual, and capable of independent verification.

Democratic institutions are strengthened when they are transparent. Accountability promotes trust. Openness reinforces legitimacy.

Where questions persist, they should be addressed directly rather than dismissed.

For these reasons, the full circumstances surrounding this agreement warrant continued public discussion, parliamentary examination, and meaningful scrutiny.

The responsibility to maintain public confidence ultimately rests with the institutions entrusted with protecting the public interest. :::

Sources and References

Place these at the end of the report under a separate heading titled **Sources and References**:

- RCMP public statements regarding the January 2026 Memorandum of Understanding with China's Ministry of Public Security.
- Public Safety Canada statements regarding Canada–China law enforcement cooperation.
- Parliamentary debates and committee discussions concerning foreign interference and Canada–China relations.
- Public reporting concerning alleged overseas police stations operating in Canada.
- Reports and publications from human rights organizations examining transnational repression.
- Academic research concerning foreign influence operations and diaspora intimidation.
- Government of Canada assessments regarding foreign interference and national security risks.
- Media reporting from major Canadian news organizations covering the agreement and subsequent disclosure concerns.
- Public commentary from diaspora advocacy organizations and civil liberties groups.
- Canadian legal and constitutional principles regarding transparency, accountability, civilian oversight, and democratic governance.

